

HOUSE BILL 1310

By Lamberth

AN ACT to amend Tennessee Code Annotated, Section 53-8-103; Title 68, Chapter 110; Title 68, Chapter 111; Title 68, Chapter 14 and Title 68, Chapter 15, relative to health.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 53-8-103, is amended by deleting subdivision (8) and substituting instead:

(8) "Food Code" means the 2009 Food Code as published by the United States department of health and human services, public health service, food and drug administration, or any subsequent Food Code, or portions thereof, published by the United States department of health and human services, public health service, food and drug administration, and adopted by rule by the commissioner;

SECTION 2. Tennessee Code Annotated, Section 68-14-303(4), is amended by deleting the language "once per month" and substituting instead "every three (3) months".

SECTION 3. Tennessee Code Annotated, Section 68-14-503(4), is amended by deleting the language "once every six (6) months," and substituting instead "once every year,".

SECTION 4. Tennessee Code Annotated, Section 68-14-703, is amended by deleting subdivision (16) and by deleting subdivision (10) and substituting instead:

(10) "Food Code" means the 2009 Food Code as published by the United States department of health and human services, public health service, food and drug administration, or any subsequent Food Code, or portions thereof, published by the United States department of health and human services, public health service, food and drug administration, and adopted by rule by the commissioner;

SECTION 5. Tennessee Code Annotated, Section 68-14-713, is amended by deleting the section and substituting instead:

(a) The commissioner of health shall set the permit fee by rule, promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, for each of the following to operate:

- (1) A food service establishment;
- (2) An auxiliary food service operation;
- (3) A temporary food service establishment;
- (4) A child care center food service establishment;
- (5) Congregate meal sites funded through the department of disability and aging that are food service establishments;
- (6) A school food service establishment; and
- (7) A farmers market food unit.

(b) This section does not apply to family child care homes, as defined in § 71-3-501.

(c) If the permit fee is delinquent for more than thirty (30) calendar days, a penalty fee of one-half (1/2) the permit fee must be assessed, in addition to the permit fee. If a check is returned for any reason, a penalty fee of one-half (1/2) the permit fee must be assessed in addition to the permit fee. The permit fee, plus any penalty, must be paid before the permit is issued.

(d) When an institution operates several group homes within close proximity to each other, the permit fee must be assessed only against the institution and not against each individual group home.

(e) This section does not apply to a blind vendor subject to title 71, chapter 4, part 5.

SECTION 6. Tennessee Code Annotated, Title 68, Chapter 14, Part 7, is amended by deleting Sections 68-14-723 – 68-14-726 in their entireties.

SECTION 7. Tennessee Code Annotated, Section 68-15-205, is amended by deleting the first two sentences.

SECTION 8. Tennessee Code Annotated, Section 68-110-101(3), is amended by inserting the following as new subdivisions:

() "Organized camp" does not include camps that are established for and used exclusively for residential purposes other than camping, if:

(i) No permanent or semipermanent structures or buildings are established or maintained on the property as living or sleeping quarters, restrooms, or a cafeteria or kitchen, to provide an outdoor group living experience for children or adults; and

(ii) Sites are rented for a week or longer;

() "Organized camp" does not include places established and used for a short-term rental unit as defined in § 13-7-602(8);

SECTION 9. Tennessee Code Annotated, Section 68-110-106, is amended by deleting the language "not less than ten dollars (\$10.00) nor more than fifty dollars (\$50.00)" and substituting instead "not less than fifty dollars (\$50.00) nor more than one hundred dollars (\$100)".

SECTION 10. Tennessee Code Annotated, Title 68, Chapter 111, is amended by deleting the chapter in its entirety.

SECTION 11. For the purpose of rulemaking, Section 5 of this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, Section 5 of this act takes effect January 1, 2026, the public welfare requiring it. For the purpose of rulemaking and

for all other purposes, all remaining sections of this act take effect upon becoming a law, the public welfare requiring it.